

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patricia Schnupp	Team: Team # 4	CCRB Case #: 200701993	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 02/10/2007 5:50 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/10/2008	Precinct: 101
Date/Time CV Reported Sat, 02/10/2007 9:52 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 02/10/2007 9:52 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Edward Moore	31535	937131	101 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Carlos Segovia	26422	937513	101 PCT
2. POM Gary Lin	30107	936960	101 PCT
3. POM Glenn Ziminski	31231	940891	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Discourtesy: Officers spoke obscenely and rudely to § 87(2)(b)	A . Exonerated
B . Officers	Force: Officers used physical force against § 87(2)(b)	B . Exonerated
C . POM Edward Moore	Force: PO Edward Moore struck § 87(2)(b) with an asp.	C . Exonerated
D . Officers	Force: Officers used physical force against § 87(2)(b)	D . Complainant Uncooperative
E . Officers	Force: Officers used physical force against § 87(2)(b)	E . Alleged Victim Uncooperative
F . An officer	Force: An officer used pepper spray against § 87(2)(b)	F . Alleged Victim Uncooperative

Synopsis

On February 10, 2007 § 87(2)(b) called the CCRB to file a complaint about an incident that occurred earlier that day involving her husband § 87(2)(b) and her brother § 87(2)(b) on § 87(2)(b) in Far Rockaway, Queens. On that date at approximately 5:50am § 87(2)(b) § 87(2)(b) called police to her residence after she got into a dispute with her husband. PO Carlos Segovia and PO Gary Lin responded to the residence and attempted to escort § 87(2)(b) out of the house. § 87(2)(b) tried to punch his wife in the face. A struggle ensued and either PO Segovia or PO Lin told § 87(2)(b) to “Shut the fuck up” and called for backup (Allegation A). PO Glenn Ziminski and PO Edward Moore responded. § 87(2)(b) alleged that the officers punched him (Allegation B) and PO Edward Moore hit him with an asp (Allegation C). The officers also pushed § 87(2)(b) § 87(2)(b) (Allegation D). After § 87(2)(b) was arrested he was taken out of the building where he encountered § 87(2)(b) § 87(2)(b) alleged that the officers punched him in the face and pepper-sprayed (Allegations E and F).

§ 87(2)(g)

§ 87(2)(b). Therefore it is recommended that Allegations A, B, and C be exonerated. § 87(2)(g)

§ 87(2)(b). Therefore it is recommended that Allegation D be closed as complainant uncooperative. § 87(2)(g)

§ 87(2)(b). Therefore, it is recommended that Allegations E and F be closed as victim uncooperative.

Summary of Complaint

§ 87(2)(b)

CCRB Testimony (encl. 4A-4C)

§ 87(2)(b) provided one statement regarding this incident, his sworn CCRB testimony on March 15, 2007.

On February 10, 2007 at approximately 6am, § 87(2)(b)'s wife, § 87(2)(b) called the police to have § 87(2)(b) escorted from their residence on § 87(2)(b) in Far Rockaway, Queens. § 87(2)(b) did not know his wife called 911 and did not know the reason why his wife wanted him escorted from their home. § 87(2)(b) let the officers into the apartment. Two officers, determined through the investigation to be PO Gary Lin and PO Carlos Segovia, entered into the apartment. PO Lin and PO Segovia were talking with § 87(2)(b) and § 87(2)(b) stood between PO Lin and PO Segovia. The officers were talking to § 87(2)(b) but § 87(2)(b) could not recall what they were saying. § 87(2)(b)'s bag was next to his wife and he grabbed it. PO Lin and PO Segovia each grabbed one of § 87(2)(b)'s arms. One of the officers whom § 87(2)(b) could not remember told § 87(2)(b) “Shut the fuck up!” § 87(2)(b) told PO Lin and PO Segovia not to talk like that in front of his two young daughters, who were standing next to his wife. § 87(2)(b) must not have shut up fast enough because PO Lin hit him in the legs with a black stick. § 87(2)(b) attempted to move his hands so he could block the hits to his legs. A “tussle” ensued between § 87(2)(b) and PO Lin and PO Segovia. § 87(2)(b) PO Lin and PO Segovia all fell on the ground. PO Lin and PO Segovia threw § 87(2)(b) on the couch and PO Lin kept hitting § 87(2)(b) on the hand with the stick. PO Segovia kept telling § 87(2)(b) to let the officers cuff him. § 87(2)(b) kept saying that he did not want this to

happen in front of his daughters. At this point other officers knocked on the door and § 87(2)(b) let the officers inside the apartment. § 87(2)(b) was on the couch when PO Lin and PO Segovia handcuffed him. § 87(2)(b) was thrown on the floor face first and the officers covered § 87(2)(b)'s head with his jacket so he could not see them. These two officers came in "swinging" and hit § 87(2)(b) with closed fists. One of the officers put his knee in § 87(2)(b)'s back and put him in and grabbed his shoulders. § 87(2)(b) did not see any of the officers that hit him. § 87(2)(b) would only be able to recognize the Asian officer, whom he remembered because he was the only Asian officer. § 87(2)(b) was not resisting. § 87(2)(b) only yelled, "Stop hitting me!" § 87(2)(b) was struck in his head and ribs with closed fists and sticks. § 87(2)(b) heard someone yell, "Ouch!" and he saw a stick drop. The officers then stopped beating § 87(2)(b) picked him up, and escorted him out of the apartment.

When § 87(2)(b) and the officer were on the first floor, he heard his brother-in-law, § 87(2)(b) coming from behind them. § 87(2)(b) called her brother but § 87(2)(b) did not know when she did that. § 87(2)(b) believed § 87(2)(b) entered the building through the rear entrance. § 87(2)(b) was asking the officers in the rear of the group what was going on. § 87(2)(b) heard what sounded like a scuffle but he was facing the other direction. When § 87(2)(b) turned around, he saw § 87(2)(b) on the floor being pepper-sprayed by an officer. § 87(2)(b) could not remember anything about this officer except he was a male in uniform. § 87(2)(b) saw § 87(2)(b) back at the 101st Precinct. § 87(2)(b) saw EMS but was not taken to the hospital. § 87(2)(b) also saw an EMT but was not taken to the hospital. § 87(2)(b) did not hear anyone use the word "nigger" or ask the officers for their names and badge numbers. § 87(2)(b) stated there were probably about eight officers present. § 87(2)(b) stated he was hit numerous times. § 87(2)(b) was charged with § 87(2)(a) 160.50 resisting arrest, § 87(2)(a) 160.50. § 87(2)(b) believed that one of the officers injured himself with his own stick. § 87(2)(b) was not under the influence of drugs or alcohol on the date of this incidence.

§ 87(2)(b) was in contact with New York City Councilman James Sanders, who represents § 87(2)(b)'s district in Far Rockaway, after he was released from Central Booking. Councilman Sanders took pictures of bruises on § 87(2)(b)'s body. One of the officers left a stick at § 87(2)(b)'s apartment and § 87(2)(b) gave the stick to Councilman Sanders. § 87(2)(b) stated that Councilman Sanders had given the information to "PO Torres" but he did not know where this PO Torres is from. § 87(2)(b) cannot see his family anymore because the judge put out a full order of protection against § 87(2)(b). § 87(2)(b) now resides with relatives.

Arrest Photo (encl. 5A)

§ 87(2)(b) does not have any visible injuries in his arrest photo

Results of Investigation

Attempts to Contact

§ 87(2)(b) who witnessed this incident, originally filed this complaint on behalf of her husband § 87(2)(b) and her brother § 87(2)(b). § 87(2)(b) was contacted on February 14, and 22, 2007 and she reiterated the narrative she provided in her initial complaint. Messages were left for § 87(2)(b) on February 16, 21, and 26, 2007. Letters were also sent to her residence on February 14 and 20, 2007. To this date § 87(2)(b) has not made any attempts to contact the CCRB and none of the letters sent to her residence have been returned to the agency. § 87(2)(b) was contacted on February 14, 2007 and an interview was arranged for February 20, 2007. § 87(2)(b) failed to appear for his interview on that date. Messages were left for § 87(2)(b) on February 21, 22, and 23, 2007. Letters were also sent to his residence on February 20 and 26, 2007. Presently § 87(2)(b) has not made any attempts to contact the CCRB and none of the letters sent to his residence have been returned to this agency.

§ 87(2)(b) claimed that a representative from New York City Councilman James Sanders' office took pictures of his alleged injuries and recovered a "stick" from the incident location. Councilman Sanders represents Far Rockaway and Jamaica, Queens. Messages were left with Councilman Sanders' aides on June 21, 2007 and July 23, 2007. No one from Councilman Sanders' office seemed to know anything

about this incident and no one made any attempts to contact the CCRB to provide any evidence relating to this case.

Identification of Officers

Four officers were interviewed regarding this complaint. PO Carlos Segovia was the arresting officer and stated during his CCRB testimony that PO Gary Lin, PO Glenn Ziminski, and PO Edward Moore were all present. According to the SPRINT sector AB, which PO Lin and PO Segovia were assigned to, and sector CD, which PO Ziminski and PO Moore were assigned to, responded to this location. In addition to this all of the officers confirmed their presence and involvement in this incident during their CCRB testimony.

PO Carlos Segovia

Memo Book (encl. 7A-7D)

0546: 52 @ § 87(2)(b)

0555: 2 under arrest #§ 87(2)(b) for § 87(2)(b) § 87(2)(b) for § 87(2)(b) 61 prepared/DIR prepared/ line of duty paperwork prepared

AIDED Report (encl. 8A)

§ 87(2)(b)

Complaint/Arrest Report (encl. 9A-9B, 10A-10B)

§ 87(2)(b) was in a verbal argument with his wife. When police arrived he refused to leave and continued to verbally abuse his wife and attempted to hit her with a closed fist. When the officers separated the two § 87(2)(b) continued to flail his arms and elbowed PO Segovia in the face causing one of his teeth to crack. § 87(2)(b) continued to resist arrest causing PO Segovia to sprain his thumb. § 87(2)(b) was charged with § 87(2)(a) 160.50 misdemeanor assault, resisting arrest, § 87(2)(a) 160.50.

Domestic Incident Report (encl. 11A-11B)

The domestic incident report states that § 87(2)(b) and § 87(2)(b) are married, have a history of domestic violence, do not live together, and have children together. § 87(2)(b) threatened to kill § 87(2)(b) and also attempted to punch her in the face. § 87(2)(b) then resisted arrest and injured PO Segovia. Charges were filed against § 87(2)(b) for the following crimes: assault in the third degree, § 87(2)(a) 160.50.

Criminal Court Complaint (encl. 13A-13B)

PO Segovia stated that he observed § 87(2)(b) swing a closed fist at § 87(2)(b) which was stopped by PO Lin. When PO Segovia attempted to handcuff § 87(2)(b) swung his arms and legs, striking PO Segovia in the cheek. § 87(2)(b)

CCRB Testimony (encl. 14A-14B)

On February 10, 2007 PO Segovia was assigned to sector AB with PO Lin. Both officers were in uniform and assigned to marked RMP 2410. PO Segovia was interviewed at the CCRB on April 16, 2007.

PO Segovia and PO Lin responded to a family dispute at § 87(2)(b). Someone let the officers into the lobby and they proceeded to the apartment where the call came from. When the officers arrived, a woman, § 87(2)(b) answered the door and told the officers she wanted her boyfriend, § 87(2)(b) to leave. § 87(2)(b) then let the officers inside of the apartment. There were two young children that were standing down the hallway near the bedroom. § 87(2)(b) stated he was leaving and he was gathering some of his belongings. § 87(2)(b) started to walk out of the apartment. § 87(2)(b) was in between PO Segovia and PO Lin and § 87(2)(b) was behind them. § 87(2)(b) swung at his wife with a closed right fist as he was leaving. § 87(2)(b) kept saying things to § 87(2)(b) but PO Segovia did not remember what she was saying. PO Lin was on

§ 87(2)(b)'s right side and grabbed his arm mid-swing. § 87(2)(b) then began fighting with the officers and started to drag them back into the apartment. PO Lin and PO Segovia stated they attempted to handcuff § 87(2)(b) for a few minutes. § 87(2)(b) elbowed PO Segovia in his face, which cracked his right molar. § 87(2)(b) kept yelling, "Let go of me, leave me alone!" § 87(2)(b) was actively engaging PO Lin and PO Segovia and attempting to fight them. PO Segovia, PO Lin, and § 87(2)(b) went from the couch to the floor. PO Segovia handcuffed one of § 87(2)(b)'s hands and PO Lin handcuffed the other. At no time did PO Segovia use his asp and he did not see any other officers use their asps either. PO Segovia did not punch § 87(2)(b) but did struggle to grab and push § 87(2)(b) on the floor so he could be handcuffed. PO Ziminski and PO Moore arrived at the location while the officers and § 87(2)(b) were on the couch. All four of the officers were needed to get § 87(2)(b) on the ground to be handcuffed. PO Segovia stated it was probably about five to ten minutes before § 87(2)(b) was handcuffed. PO Segovia stated he remembered that an officer's nightstick fell off of his belt during the struggle to handcuff § 87(2)(b).

As the officers brought § 87(2)(b) to their car outside they encountered § 87(2)(b) outside the elevator downstairs. § 87(2)(b) asked the officers what was going on and why § 87(2)(b) was being arrested. PO Segovia told § 87(2)(b) if he had questions he needed to come to the 101st Precinct. § 87(2)(b) was blocking the officers' exit while asking questions. PO Segovia stated there were other officers there aside from himself, PO Lin, PO Ziminski, and PO Moore, but he could not remember whom. Another officer arrested § 87(2)(b) because he would not comply with the officers' orders to get out of the way. § 87(2)(b) might have been pepper sprayed, but PO Segovia could not say for sure since he was focused on getting § 87(2)(b) back to the precinct. PO Segovia did not observe any injuries on § 87(2)(b) and § 87(2)(b) did not complain of any injuries. § 87(2)(b)

PO Segovia stated he did not feel that either § 87(2)(b) or § 87(2)(b) were drunk or under the influence of drugs or alcohol.

PO Gary Lin

Memo Book (encl. 15A-15B)

0540: 10-52 § 87(2)(b)

0545: 85 wrestle with perp PO Segovia injured and PO Ziminski

0550: 1 male under § 87(2)

0555: 1 male under OGA

CCRB Testimony (encl. 16A-16B)

On February 10, 2007 PO Lin was assigned to sector AB with PO Segovia. Both officers were in uniform and assigned to marked RMP 2410. PO Lin was interviewed at the CCRB on May 2, 2007.

PO Lin responded to a family dispute at § 87(2)(b). This is a building that visitors are supposed to be buzzed into however on this date the door was open. PO Lin and PO Segovia knocked on the apartment door and a female, later identified as § 87(2)(b) opened the door and informed the officers she had been in an argument with her husband, § 87(2)(b) and she wanted him removed. § 87(2)(b) did not have any visible injuries when the officers arrived. § 87(2)(b) was originally compliant and was going to leave. On the way out of the apartment § 87(2)(b) said something to § 87(2)(b) § 87(2)(b) attempted to take a swing at § 87(2)(b) PO Lin and PO Segovia each grabbed an arm to prevent § 87(2)(b) from hitting § 87(2)(b) This is when § 87(2)(b) began resisting arrest. § 87(2)(b) started swinging his arms and it appeared he was trying to engage the officers in a fight. The officers kept yelling "Give me your hands!" but § 87(2)(b) did not comply. After the fight continued one of the officers put over a call for assistance. When PO Ziminski and PO Moore arrived § 87(2)(b) was not handcuffed and was still resisting arrest. PO Lin, PO Segovia, PO Ziminski and PO Moore took § 87(2)(b) to the ground; first to the couch then to the floor. PO Lin did not use his asp and did not see any other officers use their asps. PO Lin did not punch § 87(2)(b) in his face but did hit him with his hands in other parts of his body in order to gain § 87(2)(b)'s compliance. PO Lin did not know who handcuffed § 87(2)(b) § 87(2)(b) did not have any visible injuries. § 87(2)(b) refused medical treatment by EMS workers while at the 101st Precinct.

When PO Lin exited the building he saw a man, later identified as § 87(2)(b) who would not let PO Lin exit the building. Other officers from the 100th Precinct that responded to the call for assistance dealt with § 87(2)(b). PO Lin did not see any officers use pepper-spray against § 87(2)(b).

PO Edward Moore

Memo Book (encl. 17A-17C)

0520: 10-52 § 87(2)(b)

0525: 10-85 by sector AB perp resisting § 87(2)(b)

0550: 2 males under by sector AB

CCRB Testimony (encl. 19A-19B)

On February 10, 2007 PO Moore was assigned to sector CD with PO Ziminski. Both officers were in uniform and assigned to marked RMP 2313. PO Moore was interviewed at the CCRB on March 2, 2007.

On February 10, 2007 PO Moore responded to a 10-85 (need additional units) at § 87(2)(b). The call was put over by PO Segovia and PO Lin. PO Moore and PO Ziminski ran up six flights of stairs to the apartment. When they got there the door was closed and PO Moore banged on the door and a female opened the door and let the officers inside. When the door opened PO Segovia and PO Lin were wrestling in the front living room with an individual later identified as § 87(2)(b). PO Segovia and PO Lin were attempting to handcuff § 87(2)(b) and yelling, "Stop resisting!" At this time all three men were standing up. § 87(2)(b) was not complying with the officers' orders. § 87(2)(b) was not only moving his hands away from the officers he was also attempting to fight them by pushing them. There were two small children in the living room on a couch on the other side of the room. During the struggle PO Segovia, PO Lin, and § 87(2)(b) fell onto a couch face first, but not the same couch as the children. PO Moore assisted the officers in sliding § 87(2)(b) from the couch to the floor. PO Moore, PO Ziminski, PO Segovia, and PO Lin all had to subdue § 87(2)(b). PO Moore used his asp to restrain § 87(2)(b). While § 87(2)(b) was face down on the floor, PO Moore hit § 87(2)(b) in the back of his legs in order to gain his compliance. § 87(2)(b) was still resisting by attempting to throw punches at the officers. PO Moore assisted in handcuffing § 87(2)(b). Two pairs of handcuffs had to be used to restrain § 87(2)(b). PO Moore did not hit § 87(2)(b) in the head with his asp nor did he leave his asp behind in the apartment. PO Moore was not sure if he punched § 87(2)(b) in the face but stated the officers hit § 87(2)(b) "wherever they could" because he was violently resisting and attempted to fight the officers. PO Moore did not hear any curse words used by any officers and he himself did not use any curse words.

After § 87(2)(b) was finally handcuffed the officers stood him up. § 87(2)(b) finally stopped resisting after he was handcuffed and was not hit after he was handcuffed. PO Moore did not see any visible injuries on § 87(2)(b). PO Moore and PO Ziminski took the stairs and PO Lin and PO Segovia took the elevator with § 87(2)(b). As the officers exited the building they encountered a "fight" going on between other officers and black male, later identified as § 87(2)(b). § 87(2)(b) claimed to be § 87(2)(b)'s brother-in-law. PO Moore did not know who the officers were because they were from the 100th Precinct. PO Moore did not witness these officers use pepper-spray. PO Moore did not use his pepper-spray. EMS was called to the 101st Precinct for § 87(2)(b) but he refused to go to the hospital. PO Moore did not know why § 87(2)(b) refused to go to the hospital.

PO Glenn Ziminski

Memo Book (encl. 20A-20B)

PO Ziminski did not have any memo book entries for this incident.

CCRB Testimony (encl. 22A-22B)

On February 10, 2007 PO Ziminski was assigned to sector CD with PO Moore. Both officers were in uniform and assigned to marked RMP 2313. PO Ziminski was interviewed at the CCRB on May 17, 2007.

PO Ziminski responded to a 10-85 (need additional units) at § 87(2)(b), which was put over by PO Segovia and PO Lin. PO Segovia and PO Lin responded to a domestic dispute at that location about 10 minutes earlier. PO Ziminski went to the apartment on the 6th floor. When PO Ziminski arrived he heard yelling inside the apartment and he and PO Moore knocked on the door. A female, later identified as § 87(2)(b) opened the door for the officers and let them come inside. Once inside the apartment PO Ziminski saw PO Lin and PO Segovia “wrestling” with a man later identified as § 87(2)(b). All three men were standing up and § 87(2)(b) was attempting to punch the officers. PO Ziminski and PO Moore brought § 87(2)(b) to the ground by forcing him into the couch and then onto the floor. § 87(2)(b) was eventually placed face first on the ground. § 87(2)(b) continued to kick his legs at the officers even as he was face first on the ground and about to be handcuffed. PO Ziminski did not use his asp but PO Moore used his asp on § 87(2)(b)'s legs while he was on the ground. PO Moore's asp accidentally hit PO Ziminski's hand while he was trying to handcuff § 87(2)(b). PO Ziminski sustained minor bruising. PO Ziminski did not remember if he actually handcuffed § 87(2)(b). After a few minutes of struggling on the floor § 87(2)(b) was handcuffed. § 87(2)(b) was picked up off the ground and taken out of the apartment. PO Ziminski did not see any visible injuries on § 87(2)(b)'s body and did not see any blood. PO Ziminski did not use any curse words and did not hear any other officers use any curse words. PO Ziminski did not punch § 87(2)(b) in the face and did not see any other officers punch him in the face. § 87(2)(b) was not struck in the head with an asp, only in the legs. PO Segovia injured his mouth during this incident but PO Ziminski did not know how or when this happened. PO Ziminski believed that § 87(2)(b) was intoxicated because his eyes were glassy and blood shot and he seemed agitated. There were two small children on the other side of the apartment from where § 87(2)(b) was handcuffed. At no time during the fight with § 87(2)(b) were the children in any danger of being hit.

PO Ziminski and PO Moore took the stairs and PO Lin, PO Segovia, and § 87(2)(b) took the elevator. When PO Ziminski entered the lobby he saw two officers from the 100th Precinct in the lobby arresting someone, later identified as § 87(2)(b). PO Ziminski did not see those officers pepper-spray § 87(2)(b) but he did smell it in the air. PO Ziminski heard that § 87(2)(b) refused medical treatment at the 101st Precinct.

NYPD Documents

SPRINT (encl. 23A-23D)

At 5:23am § 87(2)(b) called 911, screamed, then hung-up. Sectors A and C responded to this call.

Command Log (encl. 24A)

According to the command log § 87(2)(b) was arrested by PO Segovia at § 87(2)(b) and charged with § 87(2)(a) 160.50. § 87(2)(b) had an injury to his eye at the time of his arrest and was in possession of \$660.

Roll Call (encl. 25A)

According to the 101st Precinct tour 3 roll call PO Ziminski and PO Moore were assigned to sector CD and PO Lin and PO Segovia were assigned to sector AB.

Arrest Report (encl. 10A-10C)

§ 87(2)(b) was charged with § 87(2)(a) 160.50. § 87(2)(b) assault in the third degree, resisting arrest, § 87(2)(a) 160.50.

Line of Duty Report and Witness Statements (encl. 18A, 19A)

§ 87(2)(b) These injuries alleged to have occurred in the line of duty were documented and approved by Captain James Kimmel of the 101st Precinct and Inspector Michael Morley of Patrol Borough Queens South.

Disposition of Arrest (encl. 28A-28E)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History (encl. 2A)

This is [§ 87(2)(b)]'s first CCRB complaint.

Police Officer CCRB History (encl. 1A)

PO Moore, with two years tenure, does not have any substantiated CCRB complaints.

Conclusions and Recommendations

Disputed/Undisputed Facts

It is not disputed that officers used force to arrest [§ 87(2)(b)] or that PO Moore used his asp in an attempt to restrain [§ 87(2)(b)] [§ 87(2)(g)]

[§ 87(2)(b)] It is not disputed by either party that [§ 87(2)(b)] opened the apartment door and allowed the officers inside her apartment. [§ 87(2)(b)] asserted that the officers cursed at him but the officers all denied this. [§ 87(2)(b)] also claimed that there was only one Asian officer present during this incident. PO Lin and PO Ziminski are both Asian and were both present during this incident. [§ 87(2)(b)] also claimed that he was handcuffed while he was on the couch and that he was struck after he was handcuffed, which was disputed by the officers.

Assessment of Evidence

[§ 87(2)(g)]

Allegations Not Pleaded

[§ 87(2)(b)] alleged in her initial complaint that the officers called her brother a nigger and refused to call an ambulance for her husband. [§ 87(2)(b)] did not allege the officers called him a nigger

and § 87(2)(b) testified that an ambulance was called but he refused to be taken to the hospital. § 87(2)(g)

Allegation A: Discourtesy: Officers spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(b) alleged that the officers told him “Shut the fuck up”, during this incident. All of the officers denied cursing during this incident. § 87(2)(g)

At first § 87(2)(b) was compliant. The officers testified, however, that this escalated into a “wrestling” match after § 87(2)(b) tried to strike his wife with a closed fist, something § 87(2)(b) denied. § 87(2)(b) did not allege any foul language beyond being told to “Shut the fuck up.” § 87(2)(g)

Therefore it is recommended that Allegation A be **exonerated**.

Allegation B: Force: Officers used physical force against § 87(2)(b)

Allegation C: Force: PO Edward Moore struck § 87(2)(b) with an asp.

§ 87(2)(b) alleged that the officers assaulted him and hit him with an asp. § 87(2)(b) also claimed he was hit after he was handcuffed. All of the officers admitted to hitting § 87(2)(b) before he was handcuffed. According to the officers § 87(2)(b) violently resisted after he attempted to hit his wife in the face with a closed fist. When the officers tried to arrest and remove § 87(2)(b) he not only resisted arrest he tried to fight the officers. § 87(2)(b) denied doing this and denied he tried to hit his wife. PO Moore stated he had to use his asp to subdue § 87(2)(b) and once § 87(2)(b) was subdued he did not use his asp again. PO Moore stated he hit § 87(2)(b) in the legs because he was still resisting and kicking his legs when he was on the floor before he was handcuffed. § 87(2)(g)

§ 87(2)(b) alleged injuries from this incident but did not seek medical treatment for those injuries and there were no visible injuries in his arrest photo. § 87(2)(b) claimed that New York City Councilman James Sanders’ office took pictures of his injuries. When Councilman Sanders’ office was contacted no one knew about the pictures or returned the investigator’s phone calls. § 87(2)(g)

In light of these facts it is recommended that Allegation B and C be **exonerated**.

Allegation D: Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) stated in her initial complaint that officers pushed her during the struggle they had with her husband. § 87(2)(b) did not allege this and § 87(2)(b) did not provide a statement regarding this incident. Therefore it is recommended that Allegation D be closed as **complainant uncooperative**.

Allegation E: Force: Officers used physical force against § 87(2)(b)

Allegation F: An officer used pepper-spray against § 87(2)(b)

§ 87(2)(b) alleged in a phone conversation that officers punched him in the face then pepper-sprayed him. § 87(2)(b) witnessed § 87(2)(b) being pepper-sprayed but could not describe the officers involved. § 87(2)(b) did not cooperate with the investigation and did not provide a statement. In light of this fact it is recommended that Allegations E and F be closed as **victim uncooperative**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: